

**SUPREME COURT OF THE STATE OF NEW YORK
 COUNTY OF BRONX** X

CLARENCE ROSS

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
 POLICE DEPARTMENT, POLICE OFFICER COREY
 SIMPSON, TAX ID NO. 959237, IN HIS INDIVIDUAL
 AND OFFICIAL CAPACITY, POLICE OFFICER
 JANE DOE, IN HER INDIVIDUAL AND OFFICIAL
 CAPACITY.

Defendants,

X

Index No.
 ECF
COMPLAINT

**Plaintiff Designates Bronx
 County as the Place of Trial
 Jury Trial Demanded**

Plaintiff, Clarence Ross, by his attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for his Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, Police officers Corey Simpson, and Jane Doe as New York City Police Officer who are believed to be assigned to the 44th police precinct all of whom were police officers within the New York City Police Department on the date the incident complained of herein.

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in the use of unreasonable and excessive force and an illegal arrest against Plaintiff, Mr. Clarence Ross on September 17, 2020, outside of 1029 Summit Ave, Bronx, New York as Plaintiff was working on his motorbike. The Defendant officers noticed Mr. Ross working on his motorbike and ordered Mr. Ross to produce identification which Plaintiff had inside a nearby vehicle. The officers then arrested the Plaintiff

by placing Mr. Ross in an illegal chokehold and began to beat and kick the Plaintiff throughout his body without justification.

2. Plaintiff was charged with possession of burglary tools and held in custody for several hours.

3. The Defendants knowingly engaged in falsify records and charged Plaintiff with crimes for which the Defendants knew Mr. Ross had not committed. The charges against Mr. Ross were dismissed prior to arraignment.

4. This action is brought pursuant to 42 U.S Section 1983, and under New York State Law to redress Plaintiff's rights under the Fourth Amendment and Fourteenth Amendments to the Constitution of the United States and pursuant to Article I Section 12 of the Constitution of the State of New York for injuries Plaintiff suffered by the Defendants.

5. The officers named above are believed to be associated with the 44th police precinct located at 2 East 169th Street, Bronx, New York..

6. The officers named herein engaged in an vicious and unconstitutional attack against the Plaintiff which caused Plaintiff to seek medical treatment due to the pain and suffering inflicted upon him by the Defendant police officers.

7. Plaintiff asserts that the New York City Police Department has known about and tolerated a pattern and practice of excessive force by its police officers without fear of reprisals and or discipline by the City of New York.

JURISDICTION AND VENUE

8. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff, a resident of the State of New York.

9. This action arises under the Fourth and Fourteenth Amendment to the Constitution of the United States pursuant to 42 U.S.C Section 1983 and under Article I Section 12 of the Constitution of the State of New York.

10. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action based on 42 U. S. Code Section, 1983.

11. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

12. Plaintiff, Clarence Ross is a African American male, who at all relevant times was a resident of the State of New York. Mr. Ross is a citizen of the United States.

13. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

14. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendants, police officers Corey Simpson and Jane Doe.

15. The City of New York is responsible for enforcing the rules of the New York City Police Department and the police officers within the New York City Police Department and for ensuring that the Defendants police officers named herein and all other New York City Police Officers obey the laws of the State of New York and the laws of the Constitution of the United States.

16. That at all relevant times Defendants were acting under the color of state law.

17. At all times relevant herein the Defendants, as police officers of the City of New York, were and still remain police officers employed by the New York City Police Department who acted in the capacity of agent, servant and employee of the City of New York, New York City Police Department and acted within the scope of their employment and as such acted under color of state law.

JURY DEMAND

18. Plaintiff demands trial by jury.

NOTICE OF CLAIM

19. Plaintiff, in furtherance of his New York State causes of action, filed a timely notice of claim on or about October 3, 2020, well within ninety days of the incident alleged herein against the named Defendants and the City of New York in compliance with General Municipal Law Section 50-H.

20. On October 23, 2020, the Comptroller of the City of New York acknowledge receipt of Mr. Ross's Notice of Claim by assigning claim number 2020PI026258.

21. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

22. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

23. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

24. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

25. That by reason of the foregoing, Plaintiff Clarence Ross has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

26. That on September 17, 2020, at approximately 4:30pm, Mr. Ross was outside of 1029 Summit Ave, Bronx New York waiting for his son to come downstairs as to take his son for a ride of his motorbike when two New York City Police officers observed the Plaintiff knelling next to his motorbike.

27. Mr. Ross at the time of his arrest was outside in front of Summit Ave, putting a battery in his motorbike as he waited or his son to come downstairs.

28. That as Mr. Ross was waiting for his son Plaintiff noticed a New York City Police Vehicle pass by with two police officers inside.

29. Mr. Ross observed two police officers in uniform, a male and female, both Caucasian who got out of their vehicle and approached the Plaintiff.

30. That one of the officers asked Mr. Ross, "What are you doing their"?

31. Plaintiff responded by stating, "nothing, I", putting a battery in my bike"! Mr. Ross had a small screwdriver in his hand which he used to put a battery in his motorbike.

32. The officers then asked Mr. Ross," You got paperwork for that bike"? Mr. Ross responded by saying " yes I can go get it inside my van"!

33. The officers however prevented Plaintiff from retrieving his identification and told Mr. Ross" Don't go nowhere"!

34. Mr. Ross became nervous due to the intimidating conduct of the Defendant police and felt as though he was not free to move about and froze upon the officers' commands.

35. Mr. Ross kept asking the officers, "What did I do, why you bothering me" ? "Is this regarding the lawsuit"?

36. Mr. Ross was concerned that the police officers were retaliating against him because of the fact that he had filed a recent lawsuit against several police officers in the 44th police precinct for false arrest and unreasonable use of force. See Ross v. City of New York, et, al Index No. 29021/2020E.

37. The officers, Corey Simpson and Jane Doe responded by grabbing Mr. Ross and slamming him to the ground with their arms around Mr. Ross's neck in front of several witnesses.

38. Plaintiff posed no threat to officer Simpson or his partner Jane Doe at any time during his encounter with the officers.

39. Officer Simpson and Jane Doe grabbed Plaintiff around Plaintiff's neck and slammed Mr. Ross onto the ground.

40. The officer had their arms around Plaintiff throat and neck in an illegal chokehold as Mr. Ross lying on the ground screaming in agony.

41. The unknown female officer, identified as Jane Doe, viciously and maliciously slammed her knee into Mr. Ross's body during the course of Plaintiff's arrest.

42. That officers Simpson and Jane Doe proceeded to beat Mr. Ross continuously throughout Plaintiff's body with their fists.

43. Plaintiff was punched repeatedly in his ribs as police officer Jane Doe kept her knee on Mr. Ross's back.

44. Mr. Ross was yelling "I can't breathe, I can't breathe"!

45. Officers Simpson and Jane Doe ignored Mr. Ross's cries for help and his pleas for the officers to stop and grabbed Plaintiff's wrists and placed both of Plaintiff's hands in handcuffs.

46. The officers placed Plaintiff in a marked New York City Police Department vehicle bearing the vehicle identification number 5416 16.

47. Mr. Ross remained inside the police van for more than twenty minutes without ventilation because the vehicle's windows were closed.

48. Mr. Ross was having difficulty breathing after the officers had grabbed Plaintiff around his neck in an illegal chokehold during the course of Ross's arrest.

49. Mr. Ross begged the officers to open the windows.

50. Officer Simpson and his female partner Jane Doe, ignored Mr. Ross's concerns of lack of air inside the police vehicle by refusing to allow air inside the vehicle.

51. Plaintiff remained inside the police vehicle with the windows up for approximately thirty minutes.

52. Mr. Ross suffered injuries to his back, hands, and wrists which caused Plaintiff to seek emergency medical treatment at Lincoln Hospital for his injuries.

53. Officer Simpson and his female partner, Jane Doe drove Mr. Ross to the 44th precinct and then to Central Booking located at 215 East 161st., Bronx, New York.

54. That officer Simpson prepared paperwork inside the 44th precinct charging the Claimant with possessing "Burglar's Tool" Pursuant to P.L. Section 14035 pursuant to Arrest Number B20624083.

55. That officers Simpson and Jane Doe knowingly and willfully arrested Mr. Ross, without probable cause and threw Plaintiff to the ground, punching and kicking Plaintiff repeatedly throughout his body.

56. Plaintiff posed no threat to the officers.

57. Officer Simpson knowingly and willfully filed false charges against the Plaintiff accusing Plaintiff of crimes the officers knew Plaintiff had not committed.

58. That Mr. Ross was unreasonably seized and held in police custody for approximately twenty-four hours.

59. Mr. Ross was released from Central Booking after the Bronx District Attorney refused to corroborate the charges submitted by Officer Simpson.

60. The Defendants held Mr. Ross's property including his motorbike for several weeks without allowing Plaintiff the right to his property.

61. The Defendants deprived Mr. Ross of his property and liberty without due process of law.

62. That officers Simpson and Jane Doe intended to deprive Ross of his liberty and his property without due process of law.

63. Officer Simpson and his partner Jane Doe caused Plaintiff to suffer pain in his wrists due to the extreme tightness of the handcuffs placed on the Plaintiff at the time of his arrest.

64. Mr. Ross was treated at Lincoln Hospital for pain to his wrists, back, hands and body.

65. Plaintiff also suffered severe emotional stress due to the trauma inflicted upon him by officers Simpson and Jane Doe.

66. Plaintiff's wrists were left numb after the police removed the handcuffs from around Plaintiff's wrists.

67. Mr. Ross also suffered cuts and lacerations to his hands when officer Simpson and Jane Doe slammed Plaintiff onto the ground.

68. Plaintiff also suffered pain in his hips due to the vicious attack against him by officers Simpson and Jane Doe when the officers slammed Plaintiff to the ground and grabbed Plaintiff around his neck and body while Plaintiff was lying on the ground.

69. Plaintiff was traumatized from the events described above and continues to have constant fear of the New York City Police Department and its police officers.

70. Mr. Ross was caused to suffer embarrassment, humiliation and degradation by the Defendants' unlawful acts set forth in the preceding paragraphs.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF, CLARENCE ROSS AGAINST DEFENDANTS POLICE
OFFICERS COREY SIMPSON AND JANE DOE FOR UNREASONBLE USE OF
FORCE IN VIOLATION OF THE FOURTH AMENDMENT TO THE CONSTITUTION
OF THE UNITED STATES PURSUANT TO 42 U.S.C. SECTION 1983**

71. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 70", with the same force and effect as though more fully set forth at length herein.

72. That at all time herein mentioned Defendants Corey Simpson and Jane Doe police officers of the City of New York by the acts complained of herein and set forth above, engaged in the malicious use of unreasonable force against Mr. Clarence Ross while Plaintiff was standing outside of 1029 Summit Ave, Bronx, New York waiting for his son to come downstairs as to take his son for a ride of his motorbike when two New York City Police officers observed the Plaintiff knelling next to his motorbike.

73. That there was no articulable reasonable suspicion for the Defendant police officers to have stop and questioned Mr. Ross on the date and time set forth herein.

74. That Plaintiff Ross was not engaged in any form of criminal activity at the time of his arrest.

75. That Plaintiff did not pose a threat to the officers to justify the Defendants' use of force against the Plaintiff.

76. Defendants, Corey Simpson and Jane Doe grabbed Mr. Ross around his neck in an chokehold that has been banned by the New York City Police Department which caused Plaintiff to suffer severe pain to his chest, ribs and neck.

77. The Defendant officers Simpson and Jane Doe grabbed Mr. Ross and slammed him to the ground and began to beat him repeatedly throughout his body causing Plaintiff Ross severe pain and suffering to his body and mind.

78. That the individual Defendants named herein, Simpson and Jane Doe were acting within their individual and official capacity and within the scope of their employment as police officers of the New York City Police Department when they began their assault against Plaintiff Ross.

79. The Defendants acted in substantial abuse of their power as Police Officers of the New York City Police Department who knowingly, and intentionally deprived Mr. Ross of his Constitutional right to be free from unreasonable use of force.

80. The Defendants acts of violence inflicted upon the Plaintiff were willful, wanton and reckless with total disregard to Plaintiff's Constitutionally protected rights..

81. That Plaintiff was subjected to humiliation and personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, and scorn, by the willful and wanton use of force by Defendants, Corey Simpson and Jane Doe.

82. That as a direct and proximate result of the unlawful and unreasonable actions of the Defendants' misconduct and abuse of authority described above, Plaintiff Clarence Ross was caused to suffer facial bruises, neck and back pain, pain in his hands, body and wrists and severe

emotional stress inflicted by officers Simpson and Jane Doe for which Plaintiff seeks compensation in an amount which exceeds the amount in all lower jurisdictions.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF
OF PLAINTIFF CLARENCE ROSS AGAINST DEFENDANTS POLICE OFFICERS
COREY SIMPSON AND JANE DOE FOR FALSE ARREST AND FALSE
IMPRISONMENT PURSUANT TO 42. U. S.C. SECTION 1983**

83. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 82", with the same force and effect as though more fully set forth at length herein.

84. That at all time herein mentioned Defendant Police Officers Corey Simpson and Jane Doe, based on the factual allegations presented herein, falsely arrested, imprisoned and unreasonably seized Mr. Ross on September 17, 2020, in front of 1029 Summit St., Bronx, New York , which resulted in Plaintiff's arrest.

85. That officers Simpson and Jane Doe arrested and seized Plaintiff Ross while Plaintiff was engaged in lawful conduct for which the Bronx District Attorney concurred and refused to sustained accusations made by the Defendant officers that Mr. Ross had criminal possession of Burglar's tools.

86. That the Defendant officers, Simpson and Jane Doe seized Mr. Ross and held Plaintiff in custody for twenty-four hours without probable cause.

87. Mr. Ross was conscious of his detention, arrest, and seizure and did not consent to his confinement.

88. That the Defendant police officers, Simpson and Jane Doe, knew or should have known that they lacked probable cause to arrest and seized the Plaintiff and that Plaintiff had not been engaged in any criminal activity at the time of his arrest.

89. Mr. Ross was wrongfully and unjustifiably held against his will and unreasonably seized, and deprived of his liberty without due process of law.

90. That officers Simpson and Jane Doe knowingly and willfully prepared false police reports accusing Plaintiff of crimes for which the officers knew Plaintiff had not committed.

91. That the Defendants, Simpson and Jane Doe acted in substantial abuse of their authority and position as New York City Police officers.

92. That officers Simpson and Jane Doe knowingly and willfully deprived Mr. Ross of his right to liberty and freedom under the Fourth and Fourteenth Amendments to the Constitution of the United States, secured by 42 U.S.C Section 1983.

93. The Defendant officers' actions were willful , wanton and reckless.

94. That during Plaintiff's unlawful and wrongful incarceration, Mr. Brijlall was forcibly handcuffed, searched, assaulted, and subjected to humiliation and personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, and scorn, by Defendant Ariel Cruz.

95. As a direct and proximate result of Officers Simpson and Jane Doe's misconduct and abuse of authority described above, Plaintiff Clarence Ross was caused to suffer severe physical and emotional pain for which he now seeks compensation which exceeds that of all lower jurisdictions.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF
CLARENCE ROSS AGAINST POLICE OFFICERS COREY SIMPSON AND JANE
DOE FOR VIOLATING PLAINTIFFS' RIGHT TO BE FREE FROM UNREASONABLE
SEARCH AND SEIZURE PURSUANT TO 42 U.S CODE SECTION 1983.**

96. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "95," with the same force and effect as though more fully set forth at length herein.

97. Plaintiff in this instant action commenced this lawsuit against the Defendants pursuant to 42 U.S.C Section 1983 which states in relevant part that:

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress. . . 42 U.S.C Section 1983,

98. Plaintiffs' federal claims are brought pursuant to the Fourth Amendment to the Constitution of the United States for the Defendants unreasonable search and seizure of Plaintiff Clarence Ross.

99. Defendants Simpson and Jane Doe violated Plaintiffs' Constitutional rights under the Fourth Amendment by grabbing Mr. Ross with their hands around Plaintiff's neck and slamming Plaintiff to the ground without legal justification and without lack of probable cause to reasonably believe that Plaintiff posed a reasonable and legitimate threat to the arresting officers.

100. That the manner in which the Plaintiff was seized and held in custody was unreasonable under the circumstances as set forth herein.

101. Plaintiff was taken to the emergency room at Lincoln Hospital to be treated for the back, neck, hands and injuries to his wrists due to the wanton violence inflicted upon him by officers Simpson and Jane Doe.

102. Plaintiff was harassed, physically assaulted, ridiculed and held against his will by the Defendant officers without reason or legal justification.

103. That the Defendant's conspired together to violate Plaintiffs' rights to be free from the unreasonable search, seizure and deprivation of liberty by the Defendant police officers without due process of law.

104. That in the manner described herein, the Defendants acted with deliberate indifference and with reckless disregard to Plaintiff's Constitutional rights.

105. Mr. Ross was deprived of his rights, privileges and immunities secured to him under the Constitution and laws of the United States, and the State of New York including but not limited to the Plaintiffs' rights secured under the Fourth, and Fourteenth Amendment to the Constitution of the United States, and pursuant to Article I, Section 12 of the Constitution of the State of New York.

106. That the Defendant police officers, acting in their individual, and official capacity, and under color of law, conspired together and with others, and reached a mutual understanding to undertake a course of conduct that violated Plaintiff's rights, privileges, and immunities thereof.

107. As a direct and proximate result of the conspiracy between the Defendant officers, Mr. Ross was unreasonably searched, seized, and falsely imprisoned in violation of Plaintiff's rights under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

108. By reason of the foregoing, Clarence Ross was intentionally confined without privilege and without probable by the Defendant police officers, Corey Simpson and Jane Doe.

109. As a consequence thereof, Plaintiff Ross has been greatly injured.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
CLARENCE ROSS AGAINST THE CITY OF NEW YORK AND DEFENDANTS,
COREY SIMPSON AND JANE DOE PURSUANT TO 42 U.S.C SECTION 1983,
FOR VIOLATING PLAINTIFF'S RIGHTS PROTECTED UNDER THE DUE
PROCESS CLAUSE OF THE FOURTEENTH AMENDMENT TO THE
CONSTITUTION OF THE UNITED STATES**

110. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "109", with the same force and effect as though more fully set forth at length herein.

111. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of Plaintiffs' right to free from the deprivation of liberty without due process of law.

112. That the Defendant Officers' detainment and seizure of the Plaintiffs, including the unreasonable and unlawful imprisonment of the Plaintiff, deprived Plaintiff of his right to liberty for approximately twenty-four (24) without probable cause or legal justification.

113. As direct and proximate result of the Defendant officers' conduct, Plaintiffs' rights to Due Process of Law were violated causing Plaintiff to suffer humiliation, degradation, embarrassment, and physical and mental pain and suffering.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
CLARENCE ROSS AGAINST THE CITY OF NEW YORK PURSUANT TO 42 U.S.C.
SECTION 1983, FOR FAILURE TO TRAIN, SUPERVISE OR DISCIPLINE POLICE
OFFICER COREY SIMPSON AND JANE DOE.**

114. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through "113", with the same force and effect as though more fully set forth at length herein

115. That at all relevant times herein, Defendant City of New York, acting through its New York City Police Department developed, maintained, implemented, enforced, encouraged, and sanctioned de facto policies, practices and or customs exhibiting deliberate indifference to the Plaintiff's Constitutional rights which caused the violation of such rights.

116. The Defendants' unlawful actions were done willfully, knowingly and with specific intent to deprive Plaintiff of his constitutional rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

117. That at all relevant times, the City of New York acting through the Police officers Simpson and Jane Doe of the New York City Police Department had de facto policies, practices, customs and usages that directly and proximately caused the violation of Plaintiff's Fourth and Fourteenth Amendment rights as alleged herein.

118. That at all relevant times the City of New York failed to train, supervise or discipline the Defendant police officers Corey Simpson and Jane Doe thereby directly and proximately causing the violation of Plaintiff's Constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States.

119. The acts complained of herein were carried out by the Defendants police officers Corey Simpson and Jane Doe in their official capacity as police officers of the New York City Police Department pursuant to the customs and practices of the New York City Police Department or as a result of the City of New York's failure to train, supervise or discipline the Defendant officers.

120. The City of New York through its policy makers and agents were fully aware of and did nothing about its police officers engaging in unreasonable use of force, false arrest and imprisonment knowingly and intentionally without probable cause.

121. That the City of New York failed to adequately train, monitor, supervise or discipline its officers, agents and or servants including the Defendant police officers to respect and comply with the Fourth and Fourteenth Amendments rights of individuals included Plaintiff Clarence Ross.

122. As a direct and proximate result of the City's failure to train, supervise or discipline the Defendant officers and the lack of adequate policies, practices and customs, Mr. Ross sustained damages as set forth herein.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST THE DEFENDANT POLICE OFFICERS, COREY SIMPSON AND JANE
DOE FOR ASSAULT UNDER THE COMMON LAW OF THE STATE OF NEW YORK.**

123. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “122”, with the same force and effect as though more fully set forth at length herein

124. That the Defendants, their agents, servants and /or employees, without cause or justification, or the consent of the plaintiff, intentionally placed the Plaintiff in imminent fear of physical harm by the manner in which Defendants Corey Simpson and Jane Doe threatened Mr. Clarence Ross by ordering Plaintiff “Don’t go nowhere”, while Plaintiff informed the officers that his identification was in his van.

125. The officers approached Mr. Ross who immediately became nervous due to the intimidating conduct of the Defendant police officers.

126. Plaintiff was not free to leave.

127. Mr. Ross kept asking the officers,” What did I do, why you bothering me”? “ Is this regarding the lawsuit”?

128. Mr. Ross was concerned that the police officers were retaliating against him because of the fact that he had filed a recent lawsuit against several police officers in the 44th police precinct for false arrest and unreasonable use of force. See Ross v. City of New York, et, al Index No. 29021/2020E.

129. The officers, Corey Simpson and Jane Doe responded by grabbing Mr. Ross and slamming him to the ground with their arms around Mr. Ross’s neck in front of several witnesses.

130. The Defendants proceeded to slam Plaintiff to the ground with their arms around Plaintiff's neck in an illegal chokehold.

131. Mr. Ross was caused to fear for his safety and for his life.

132. That by reason of the foregoing the Plaintiff has been unlawfully injured and seeks compensation against the Defendant officers for inflicting unnecessary pain, suffering, physical and emotional distress.

133. Defendants officers' misconduct, threats and intimidation towards Mr. Ross was intentional.

134. That the Defendants, Simpson and Jane Doe intentionally placed Plaintiff in apprehension of fear and imminent harm and offensive contact by the Defendant officers' unlawful and unprivileged threat of force against the Plaintiff which cause Plaintiff to suffer severe emotional injuries for which Plaintiff now seeks compensation.

135. That Plaintiff had reasonable apprehension of imminent harm due to Defendant police officers' offensive actions against the Plaintiff.

136. The Defendant police officers intentionally placed Plaintiffs in reasonable fear of an imminent battery.

137. As direct and proximate result of the Defendant officers' misconduct, Plaintiff suffered humiliation, degradation, embarrassment pain, suffering, and mental anguish.

**AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST THE DEFENDANTS,
POLICE OFFICERS COREY SIMPSON AND JANE DOE FOR BATTERY AGAINST
THE PLAINTIFF PURSUANT TO THE COMMON LAW OF THE STATE OF NEW
YORK.**

138. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 137" with the same force and effect as though more fully set forth at length herein.

139. That by reason of the foregoing and by Defendants Simpson and Jane Doe's misconduct of grabbing Plaintiff around his neck with both arms and slamming Plaintiff to the ground and beating Mr. Ross in his body without legal justification caused Mr. Ross to suffer severe pain in his neck, wrists, hands and body.

140. That at the time of the incident complained of herein, the Defendants, Corey Simpson and Jane Doe were acting in their official capacity as police officers within the New York City Police Department, and acting within the scope of their employment as such, committed a willful, unlawful, unwarranted and intentional battery upon Plaintiff Clarence Ross.

141. The by reason of the forgoing and by Defendants Corey Simpson and Jane Doe unlawful, willful and wanton misconduct as more fully set forth above, the Defendant officers committed a willful, unlawful, unwarranted and intentional battery upon Plaintiff, Clarence Ross.

142. That as a result of the foregoing battery on the part of the Defendants, the Plaintiff were caused to suffer emotional injuries.

143. That Plaintiff has suffered and will continue to suffer agony in body, and mind.

144. That based on the foregoing unreasonable actions of the Defendants, Plaintiff has been damaged and are hereby seeking compensation for his emotional pain and suffering.

145. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained damages alleged herein.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR AGAINST THE CITY OF NEW
YORK PURSUANT TO COMMON LAW STATE OF NEW YORK UNDER
RESPONDEAT SUPERIOR**

146. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "145", with the same force and effect as though more fully set forth at length herein.

147. That the City of New York hired and supervised Defendants police officers Corey Simpson and Jane Doe who together seized the Plaintiff and engaged in the assault, battery and unlawful willful and intentional use of force against the Plaintiff.

148. That the Defendants committed the wrongs stated herein without probable cause, and without legal justification all done while acting under color of law and within the scope of their duties as employees of the City of New York and the New York City Police Department.

149. As a result, the City of New is liable for the unlawful acts of their employees, police officers Corey Simpson and Jane Doe under the well settled and legally recognized doctrine of Respondeat Superior.

**AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDENTS POLICE
OFFICERS COREY SIMPSON AND JANE DOE FOR THE INTENTIONAL
INFLICTION OF EMOTIONAL STRESS PURSUANT TO THE COMMON LAW OF
THE STATE OF NEW YORK.**

150. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “149” with the same force and effect as though more fully set forth at length herein.

151. That the Defendant police officers, Corey Simpson and Jane Doe as agents, servants and/or employees of the New York City Police Department, engaged in actions the officers intended to inflict emotional trauma on the Plaintiff,

152. That by reason of the foregoing, the Plaintiff has suffered physical pain and suffering, mental and emotional distress due to Defendants’ unlawful and reckless actions as more fully described herein.

153. Mr. Ross’s claim for the Intentional Infliction of Emotional Distress was caused by the Defendants Corey Simpson and Jane Doe as New York City Police officers who intentionally and without reason, privilege or probable cause knowingly and willfully

grabbed Plaintiff with their arms around Plaintiff's neck in an illegal chokehold and beat Plaintiff throughout his body causing Plaintiff to suffer severe emotional and physical trauma.

154. That the misconduct as more fully described above inflicted by police officers Corey Simpson and Jane Doe was extreme and outrageous conduct, and intended to cause severe emotional distress.

155. That officers' misconduct directly caused Plaintiff to suffer severe pain to his wrists, hands, neck and body when the Defendant police officers slammed Plaintiff to the ground without legal justification .

156. The acts committed against the Plaintiff by the Defendant police officers were intended to cause the Plaintiff extreme physical damage to his mind and body.

157. That as a direct and proximate result of the misconduct and abuse of authority by Defendant police officers Corey Simpson and Jane Doe, Plaintiff Clarence Ross has been injured and has sustained the damages hereinbefore alleged.

158. As a direct and proximate result, Mr. Ross suffered the injuries and damages described above.

WHEREFORE , Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

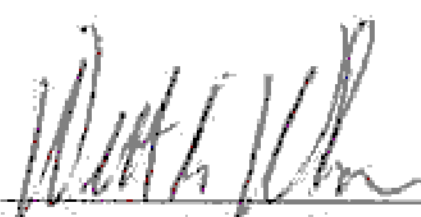
A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.

B. Awarding punitive damages to Plaintiff in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would

effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

- C. An award to Plaintiff of the costs and disbursements herein.
- D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- E. Granting such other and further relief as this Court may deem just and proper.

Dated: December 10, 2020
Bronx, New York

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